



Huntsville, Alabama

305 Fountain Circle
Huntsville, AL 35801

Cover Memo

Meeting Type: City Council Regular Meeting **Meeting Date:** 7/9/2026

File ID: TMP-7035

Department: Administration

Subject:

Type of Action: Approval/Action

Resolution to name, create and establish Tax Increment Financing District ("TIFD 9") and to adopt the Project Plan for "TIFD 9."

Resolution No.

Finance Information:

Account Number: NA

City Cost Amount: NA

Total Cost: NA

Special Circumstances:

Grant Funded: NA

Grant Title - CFDA or granting Agency: NA

Resolution #: NA

Location: (list below)

Address:

District: District 1 ☐ District 2 ☐ District 3 ☐ District 4 ☐ District 5 ☐

Additional Comments:

RESOLUTION NO. 26 - _____

WHEREAS, the City of Huntsville is vested with the power and authority to create and develop tax increment financing districts pursuant to *Ala. Code (1975) §§ 11-99-1 et seq.*, including, without limitation, for the purpose of conserving and rehabilitating blighted or economically distressed areas, all through appropriate public action; and

WHEREAS, the City of Huntsville has made a commitment to the development and maintenance of a strong local economy and job growth by encouraging new commercial, industrial, and manufacturing facilities and other forms of economic growth; and

WHEREAS, the project area hereinafter defined as "TIF D9" is partially blighted and economically distressed and possesses potential for development, redevelopment and revitalization by private enterprise and sound economic growth, but, because of the partially blighted and economically distressed nature of the property, it is unlikely that this potential would be realized without appropriate public action authorized by *Ala. Code (1975) §§ 11-99-1 et seq.*; and

WHEREAS, the City of Huntsville is desirous of providing for such development, redevelopment and revitalization through appropriate public action in the form of funding for acquisition of land and construction of adequate public infrastructure and works including, without limitation, roadways, bridges, drainage, sewer, utility, and similar improvements, which will support private development and economic growth anticipated as a result of the creation of TIF D9 (hereinafter defined); and

WHEREAS, the City of Huntsville has determined that an appropriate means of financing, in whole or in part, the City's obligations as outlined in the Project Plan (hereinafter referred to) to acquire land and provide the public improvements and works contemplated therein is through establishment of a tax increment financing district, which is a vehicle for funding land purchase and public improvements and works in a defined project area or tax increment district based upon the principle that otherwise underutilized and undeveloped areas can be developed through appropriate public action; and

WHEREAS, tax increment financing is a method of funding improvements in a defined project area or tax increment district slated for development or redevelopment by capturing all or a portion of the increased tax revenue that may result from development of projects and the participation of private enterprise; and

WHEREAS, the City of Huntsville has determined that tax increment financing provides an expedient and viable method of implementing the City's objectives.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Huntsville, as follows:

1. The tax increment district described in this resolution shall be named “Tax Increment Financing District 9” (“TIF D9”).

2. The City Council, as required, has previously certified TIF D9 by Resolution No. 26-462, adopted and approved on May 28, 2026, as required by *Ala. Code (1975) § 11-99-4(a)(5)*.

3. The City Council hereby adopts and approves the Project Plan for TIF D9, a copy of which is attached hereto as “Exhibit A,” and the boundaries of the tax increment financing district, which include whole units of property assessed for general property tax purposes, as are defined and declared to encompass the geographical area identified in the maps set forth in the Project Plan.

4. The tax increment financing district is created and established as of the 10th day of July, 2026, and shall have a duration not to exceed thirty (30) years unless dissolved or otherwise amended by the City Council.

5. The City Council finds in accordance with *Ala. Code (1975) §§ 11-99-4(a)(3)* d. that:

a. not less than fifty (50) percent by area of the real property within the project area is a partially blighted or economically distressed area as contemplated and defined by *Ala. Code (1975) § 11-99-1(b.)* and *§ 11-99-2* and that areas within the project area are underutilized and suitable for the location of new public infrastructure, public and private revitalization, redevelopment and rehabilitation.

b. the aggregate value of equalized taxable property in TIF D9 plus all existing districts created by the City of Huntsville does not exceed fifty (50) percent of the total value of equalized taxable property within the City of Huntsville.

6. The City Council anticipates the issuance by the City of general obligation warrants to provide funds for all or any portion of the City’s obligations as outlined in the Project Plan, and the City anticipates that such indebtedness will be paid from general funds of the City available for such purposes, including (although not pledged to payment of such general obligation warrants) revenues derived by the City pursuant to the establishment of TIF D9 or as otherwise permitted under *Ala. Code (1975) §§ 11-99-1 et seq.*

7. A copy of the Project Plan has been mailed to the governing body of each deferred tax recipient.

8. The Director of Finance is directed to make written application to the tax assessor for determination of the tax increment base, providing therewith any and all required information, and to perform any and all actions necessary, advisable, convenient

or expedient to the creation of TIF D9 and the implementation of the provisions and effectuation of the purposes of the Project Plan, as consistent with applicable state law.

9. The various departments of the City of Huntsville are directed to perform any and all actions necessary, advisable, convenient or expedient to the creation of TIF D9 and the implementation of the provisions and effectuation of the purposes of the Project Plan, as consistent with applicable state law.

10. By adoption of this Resolution, the City Council intends that the City of Huntsville shall have all powers and authority granted by and consistent with the provisions of Ala. Code (1975) §§ 11-99-1 *et seq.*, and all other provisions of applicable state law.

ADOPTED this the 9th day of July, 2026.

President of the City Council of
the City of Huntsville, Alabama

APPROVED this the 9th day of July, 2026.

Mayor of the City of Huntsville,
Alabama

PROJECT PLAN FOR TAX INCREMENT FINANCING DISTRICT 9

CITY OF HUNTSVILLE, ALABAMA

In recent years, the City of Huntsville, Alabama (the “City” or the “City of Huntsville”), has undertaken intensive activities designed to attract the growth of private enterprise within the general vicinity of the central business district. The City continues to explore and undertake innovative actions designed to enhance job opportunities, new private investments, and quality of living within the municipality. The City has engaged in these actions for the primary purposes of heightening the quality of opportunities and facilities available to all citizens and businesses, in turn, maximizing this municipality as a drawing card for new economic growth.

All activities provided for in this Project Plan will take place within the corporate limit of the City of Huntsville.

The project area (defined below) encompasses areas that are underutilized, deteriorated, contain substandard public and private structures in need of redevelopment, or remain undeveloped. At this point, the development and the redevelopment of the areas located within the project area cannot be fully realized due to these existing conditions, therefore impairing sound economic growth of the area. The planned activities are designed and intended to assist in alleviating these circumstances through multiple public investments that will encourage development and redevelopment within the project area while also improving the overall public health and quality of life of citizens of the City.

The City of Huntsville prepares this Project Plan in anticipation of the adoption of a resolution creating a tax increment financing district in accordance with *Ala. Code (1975) §§ 11-99-1 et seq.* (the “Tax Districts Act”).

The City finds that not less than 50%, by area, of the real property within the project area is a partially blighted or economically distressed area as contemplated and defined in *Ala. Code (1975) §§ 11-99-1(b), (c) and § 11-99-2 (2026)*, and that the areas within the project area are underutilized and suitable for the location of new public infrastructure, public and private revitalization, and development. The project area, when serving as a site for such purposes, will enhance the public benefit and welfare by, among other things, facilitating the creation of new public amenities, private investments, new jobs, stimulating the local economy, creating additional tax revenues, and enhancing the public’s overall quality of life. Both public and private uses, investments and purposes as contemplated by the Tax Increment Districts Act are planned or anticipated within the project area.

The City further finds that the project area contains areas of partially blighted and economically distressed properties because it is an area which is predominately older pre-existing development with obsolete platting, diversity of ownership, deterioration of structures or of site improvements, or otherwise, that the sound economic growth of the area has been substantially impaired or arrested, and for other reasons listed in *Ala. Code (1975) § 11-99-2 (1)*.

The City finds that the blighted or economically distressed project areas are salvageable and can be conserved and rehabilitated through appropriate public action as authorized by *Ala. Code §§ 11-99-1 et seq.*

The City finds that the salvage, conservation, development and rehabilitation of the project area, as described in this Project Plan and other documents prepared pursuant to *Ala. Code (1975) §§ 11-99-1 et seq.*, are public uses and/or purposes for which public money may be expended under Alabama law.

The financing of the City's obligations with respect to the land acquisitions and public works and improvements described in this Project Plan will be met in whole or in part through the issuance of general obligation warrants of the City and other funds of the City. Such general obligation warrants will be secured by the full faith and credit of the City. While debt service on such warrants will be payable from any funds lawfully available therefore and without any special pledge of taxes or other revenues of the City, the City anticipates that it will cover its debt service costs on such general obligation warrants from tax increment revenues derived by the City pursuant to the establishment of Tax Increment Financing District 9 (hereinafter defined as "TIF D9" or "TIF 9"). The City will cover additional costs of land acquisition, easements, and public works and improvements within TIF D9 with cash, which the City will reimburse itself for with tax increment revenues from TIF D9.

Financing in the manner hereinabove described whereby tax increment revenues are used to cover the City's debt service costs and to reimburse the City for cash expenditures is a method of funding public works and improvements in the project area by capturing all or a portion of the increased tax revenue that may result if the public works and improvements stimulate private investment, thereby increasing the property values within the project area. As private investment increases, the value of the property increases which results in an increase in the tax base within the project area. The increased revenue, *i.e.*, the "tax increment," along any voluntary deposits it makes into the tax increment fund, is placed into a fund to be paid over to the City for reimbursement of its project costs for public works and improvements (whether by reimbursing the City's debt service costs or reimbursing the City for costs incurred using other City funds), special projects within the development area, and payment of indebtedness incurred with regard to said land acquisition and public works and improvements. Tax Increment Financing District 9 ("TIF D9" or "the project area") is identified in this document in order to implement the City's objectives and to finance and cover the City's obligations through capture of the tax increments.

In this instance, the capture of the tax increments will include 13 mills designated for use by the City of Huntsville, 11 mills designated for use by Madison County, and 22.5 mills designated for use by Huntsville City Schools. The tax increments will not include the 6.5 mills designated for the State of Alabama nor the 5.5 mill for Madison County-Wide Special School taxes.

The prospects for acquiring land and improving the areas within TIF D9 without the use of tax increment financing as aforesaid are limited by a lack of funding, a problem which has and will continue to substantially impair or arrest sound economic growth of the

project area. Potential development in the project area presents an opportunity for the City to provide the funding needed to encourage private development of the project area which will stimulate the local economy, increase job opportunities and create additional tax revenues, all of which serve to enhance the overall quality of life in surrounding areas.

I. KIND, NUMBER AND LOCATION OF PROPOSED PUBLIC WORKS OR IMPROVEMENTS AND ESTIMATED PROJECT COSTS.

The information provided below in regard to the land acquisitions and public works or improvements to be made in TIF D9 are estimates. In addition, the project costs listed below are estimates of the expenditures or monetary obligations that the City expects to make or incur as costs of the land acquisition and public works or improvements noted herein; are dependent upon the successful acquisition of appropriate land pursuant to this Project Plan; and are subject to reasonable alteration based upon prevailing circumstances and the requirements and exigencies of future development as it actually takes place. Although premised upon the City's best information, these estimates cannot be guaranteed as accurate and should be viewed as approximations.

The City of Huntsville will provide: (1) enhancement to publicly owned facilities, (2) road improvements, (3) utilities, (4) mass grading, (5) greenways and public spaces, and (6) professional services. A more thorough description of these public works or improvements is provided below.

The City's maximum commitment for the project costs listed above is \$220 million (two hundred twenty million dollars). These costs shall be paid: (1) directly from the tax increment fund; (2) out of the general or other funds of the City; (3) out of the proceeds of the sale of warrants or other obligations issued by the City; or (4) out of the proceeds of the sale of tax increment obligations. In addition to the estimates of project costs for public works and improvements and other project costs listed herein, incidental costs related to the listed project costs may also be incurred.

The proposed locations of the public works or improvements provided for in this Project Plan are noted on the map attached hereto as *Exhibit D*. The proposed locations as shown cannot be guaranteed and are subject to change depending on the availability of land, the availability of rights-of-way, the availability of materials, and any other circumstance which may arise during the planning, construction, and completion phases of each individual public work or improvement.

A. Proposed public works or improvements and associated costs, professional services costs, organizational costs, amounts of contributions made in connection with the implementation of this Project Plan, and payments made at the discretion of the Council which are necessary or convenient to the creation of TIF D9 or the implementation of this Project Plan.

The provision or construction of public works or infrastructure improvements (also including, without limitation, costs of land, easement and similar acquisitions to provide the same) may include, but not be limited to:

(i) The provision of funding for the Von Braun Center North Hall Expansion within the project area, estimated to cost \$200 million (Two Hundred million dollars), to include construction of a new North Hall exhibit area, upgrades to food service areas, new meeting rooms, conference and exhibit space, upgraded parking, new South Hall entrances, new access bridge, outdoor concourses, and any necessary public drainage, utilities, and other infrastructure;

(ii) The provision of funding for Lowe Avenue Improvements and associated educational facilities improvements for a new Huntsville Junior High School within the project area, estimated to cost \$5 million (Five million dollars), to include improving an existing portion of Lowe Avenue from its current configuration to accommodate increased vehicular activity, improve pedestrian facilities for safety, any necessary public drainage, utilities, and educational facilities capital infrastructure related to constructing a new Huntsville Junior High School;

(iii) The provision of funding for renovations to the former Federal Courthouse on Holmes Avenue in the project area, estimated to cost \$5 million (Five million dollars), to consist of upgrading the deteriorating interior components of the building, various ADA improvements, and other necessary infrastructure for the Madison County Commission to utilize this structure in providing government services to the public; and

(iv) The provision of funding for the design and construction of the North Huntsville Beltline Greenway System within the project area, estimated to cost up to \$5 million (Five million dollars), to include right-of-way or easement acquisition, public land, greenway infrastructure, lighting, landscape, hardscape, safety equipment, and any necessary public drainage, utilities, and other infrastructure; and

(v) The provision of funding a new public park associated with the U.S. HUD Choice Neighborhood Mill Creek Redevelopment Project within the project area, estimated to cost \$5 million (Five million dollars), to consist of enclosing an existing drainage channel, construction of a new open space public park, park equipment and furnishing, landscaping, lighting, and other necessary public drainage, utilities, and other infrastructure.

Total cost of combined TIF D9 project costs listed above shall not exceed \$220 million (Two Hundred Twenty million dollars). Should any of the projects listed above be completed before requiring the full expenditure of the funds provided herein or should any project require more funding than allotted above, the funds may be redistributed among the project(s) listed herein. However, under no circumstances shall any of the funds provided for herein be used for any project not listed in this document or the final project plan adopted for TIF D9, nor shall the total funds, however distributed, exceed the total estimated cost of the improvements.

B. Other project costs.

The City estimates that the following project costs will also be incurred:

Imputed Administrative Costs (including, but not limited to, reasonable charges for the time spent by officers and employees of the City in connection with the implementation of this Project Plan), which shall be calculated on an hourly basis at the hourly rate paid to each respective public officer or employee under the City of Huntsville Salary schedule in effect at the time that the work hours are accrued.

Additional Professional Service Costs (including, but not limited to, architectural, planning, engineering, fiscal, underwriting, and legal advice and services), as evidenced by invoice or contractual obligation on the basis of actual costs incurred.

Additional Organizational Costs (including, but not limited to, costs of conducting environmental impact or other studies and the costs of informing the public with respect to the creation of the tax increment district and the implementation of this Project Plan), as evidenced by invoice or contractual obligation on the basis of actual costs incurred.

Financing Costs (including, but not limited to, all interest paid to holders of tax increment obligations during the period of implantation of this Project Plan, the costs of any form of credit enhancement, printing and trustee costs, underwriting, legal services and any premium paid in excess of the principal amount thereof because of the redemption of such obligations prior to maturity), to be calculated on the basis of actual costs incurred.

Relocation Costs (including, but not limited to, relocation payments made following condemnation under *Alabama Code (1975) §§ 18-1A-1 et seq.*), to be calculated on the basis of actual costs incurred.

II. METHODS OF FINANCING ALL ESTIMATED PROJECT COSTS AND THE TIME WHEN RELATED COSTS OR MONETARY OBLIGATIONS ARE TO BE INCURRED.

During the life of TIF D9, the City expects to issue tax increment obligations or general obligation or other indebtedness that will be used to finance or refinance the cost of land acquisition and public works or improvements specified in this Project Plan. The City will reimburse the cost of the principal and interest it incurs on any general obligation or other indebtedness of the City incurred for such purpose from the monies deposited in the tax increment revenue fund of TIF D9.

The costs of land acquisition and public works and improvements to be made in TIF D9 will be repaid out of the increase in property taxes (i.e., the tax increment revenues)

generated from the TIF D9 project area.

The timing of costs and monetary obligations to be incurred are dependent upon factors relating to actual development of the various portions of TIF D9, further appreciation and redevelopment of the property located therein, and the possibility of warrants or other debt issues. All anticipated or estimated expenditures provided for in this Project Plan will be made within 5 (five) years of the creation of TIF D9, unless an amendment to this Project Plan is properly adopted.

The City's Finance Director will have the power to open an account and pay project costs incurred in TIF D9 that have been authorized for payment by the City Finance Director.

For the purpose of paying project costs, payments may be made in full at the time such costs accrue, thus allowing the project to be all or partially funded on a pay-as-you-go basis.

III. BOUNDARIES OF TIF D9 AND MAPS.

The boundaries of TIF D9 are shown and described in the following attachments:

Map showing location of TIF D9 (Exhibit A);

Map showing current uses and conditions of the real property in TIF D9 (Exhibit B);

Map showing proposed land to be acquired and public works or improvements and uses in TIF D9 (Exhibit C);

Map showing future development in TIF D9 (Exhibit D);

The legal description for TIF D9 (Exhibit E);

IV. ESTIMATED NON-PROJECT COSTS.

At this time, there are no proposed changes to the City's zoning, master map plan, building code, or other ordinances or resolutions affecting TIF D9.

V. ESTIMATED NON-PROJECT COSTS.

At this time, the City is not aware of any non-project costs which may be incurred as a result of the activities in planning in TIF D9.

VI. PROPOSED PLAN FOR RELOCATION AND DISPLACEMENT.

Land within TIF D9 is predominantly in a pre-developed area within the central portion of the City. Accordingly, no relocation or displacement is anticipated or

required.

VII. CONCLUSIONS.

This Project Plan is written to conform with the provisions of *Ala. Code (1975) §§ 11-99-1 et seq* and other applicable Alabama law. If any portion of this Project Plan shall conflict with the provision of *Ala. Code (1975) §§ 11-99-1 et seq.* or any other applicable law or statute, then the conflicting portion shall be considered severable, and such conflict shall not affect the remaining portions of this Project Plan, which shall remain viable. In order to carry out the intention of the adopting resolution, reasonable changes to this Project Plan may be made without recourse to amendment.

EXHIBIT A

Tax Increment Financing District 9 Boundary

EXHIBIT B

TIF District 9 – Current Uses and Conditions

EXHIBIT C
TIF District 9 – Project Plan

1. Von Braun Center Improvements
2. Lowe Avenue & New Huntsville Junior High
3. Former Federal Courthouse Renovations
4. North Huntsville Beltline Greenway
5. Mill Creek Park

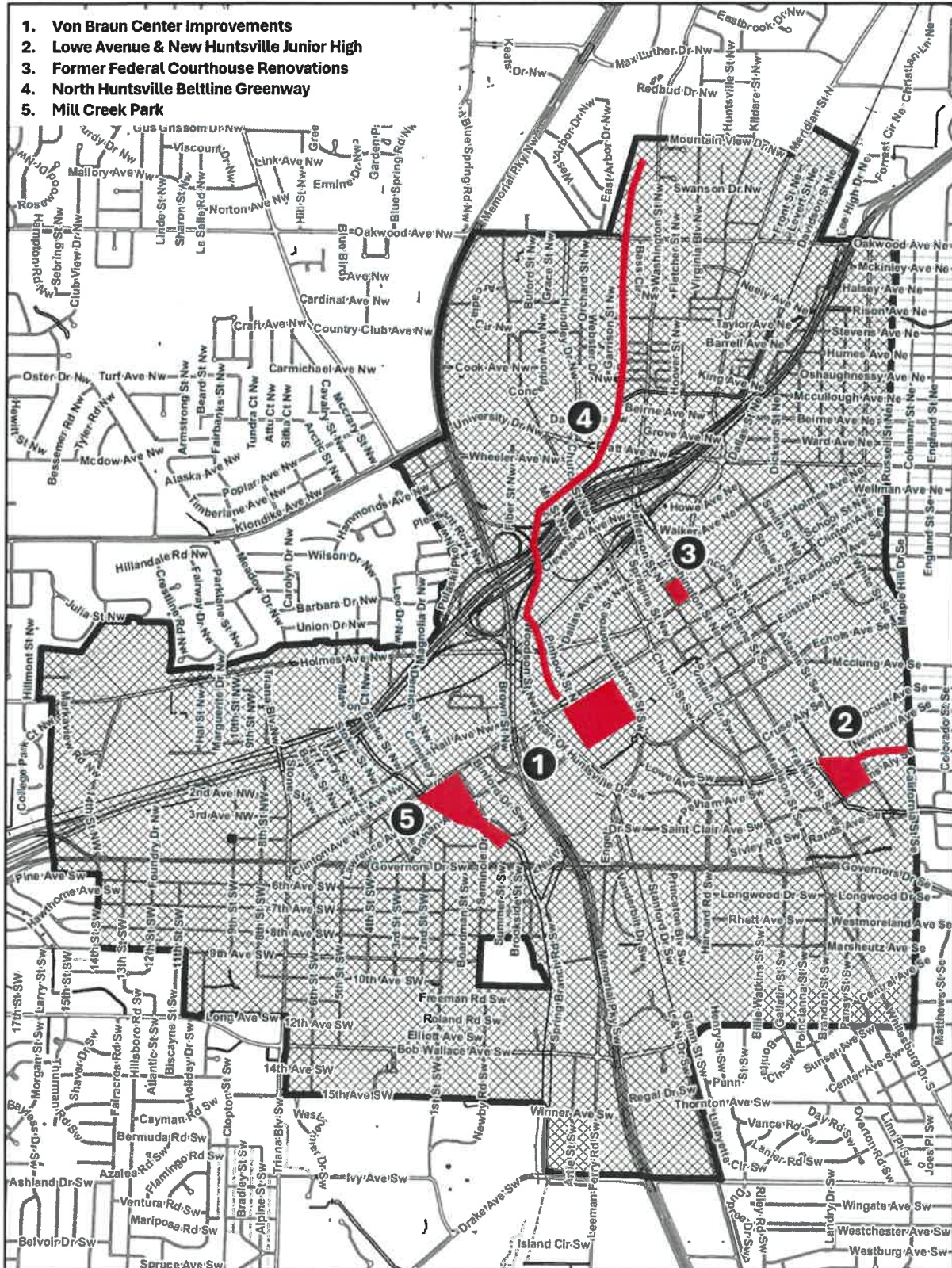


EXHIBIT D

TIF District 9 – Future Development

TIF 9

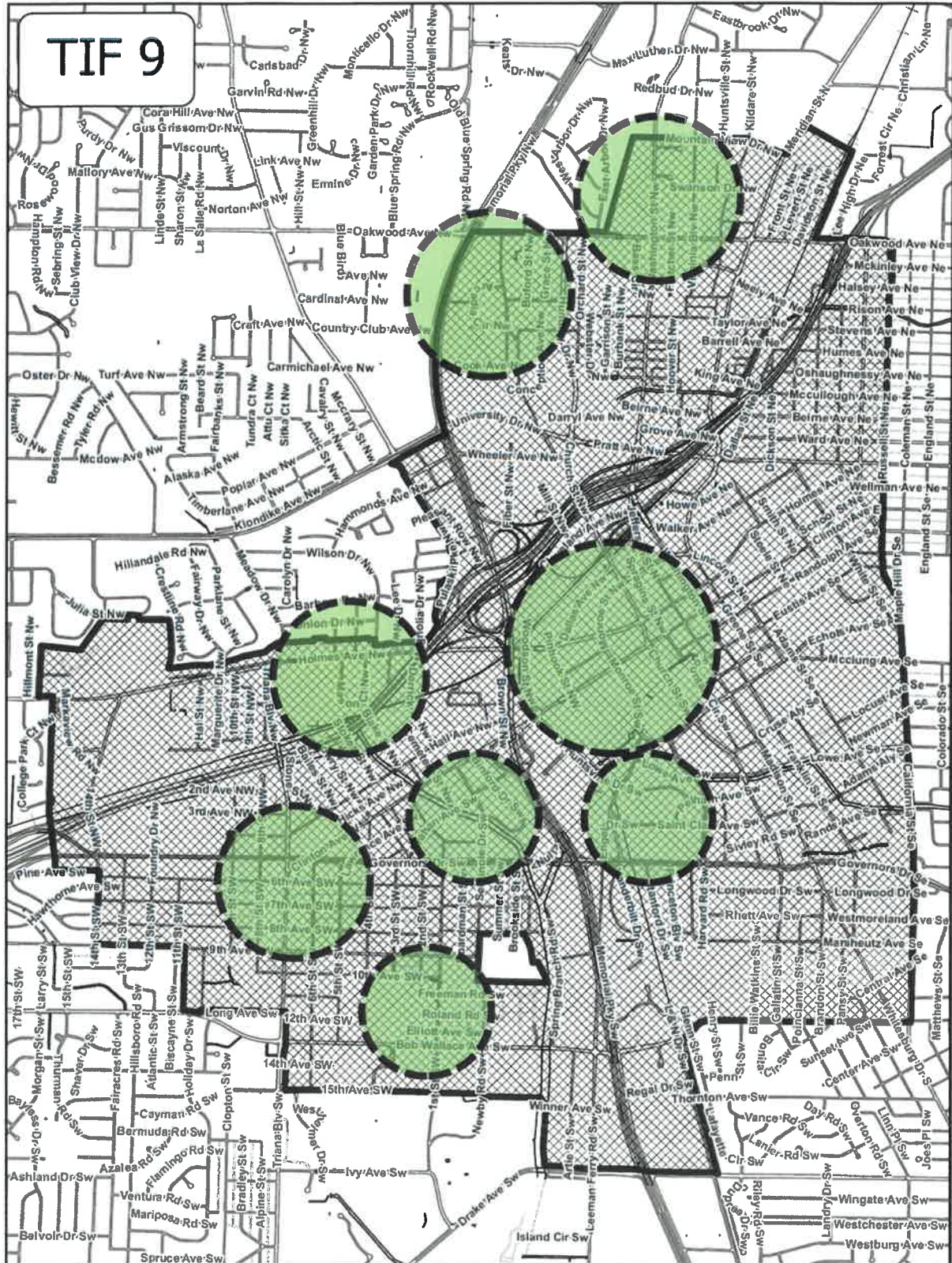


EXHIBIT E

TIF District 9 – Legal Description

All that part of Sections 25, 26, 34, 35, 36, Township 03 South, Range 01 West of the Huntsville Meridian, Section 06, Township 04 South, Range 01 East of the Huntsville Meridian, and Sections 01, 02, 03, 11, 12, Township 04 South, Range 01 West of the Huntsville Meridian in the City of Huntsville, Alabama; more particularly described as beginning at a point located South 44 Degrees 31 Minutes 07 Seconds West a distance of 3605.03 feet from the Northeast Corner of said Section 26; said point is also described as being located at the intersection of the centerline of Memorial Parkway and the North right of way of Oakwood Avenue; thence from the Point of Beginning, East along the North right of way of Oakwood Avenue a distance of 1969.79 feet; thence North 16 Degrees 50 Minutes 48 Seconds West a distance of 34.94 feet; thence South 86 Degrees 53 Minutes 55 Seconds East a distance of 309.02 feet; thence North 16 Degrees 15 Minutes 10 Seconds East a distance of 1685.76 feet; thence South 88 Degrees 44 Minutes 39 Seconds East a distance of 1014.61 feet; thence North 82 Degrees 57 Minutes 52 Seconds East a distance of 130.89 feet to a point located on the North right of way of Mountain View Drive; thence Easterly along the North right of way of Mountain View Drive a distance of 1397.66 feet; thence South 77 Degrees 31 Minutes 03 Seconds East a distance of 134.51 feet to a point located on the Eastern right of way of Meridian Street; thence Northeasterly along the Eastern right of way of Meridian Street a distance of 578.90 feet; thence South 60 Degrees 45 Minutes 17 Seconds East a distance of 891.38 feet to a point located on the Eastern right of way of the Norfolk Southern Railroad; thence Southwesterly along the Eastern right of way of the Norfolk Southern Railroad a distance of 1627.10 feet to a point located on the North right of way of Oakwood Avenue; thence Easterly along the North right of way of Oakwood Avenue a distance of 1309.46 feet; thence South 04 Degrees 46 Minutes 56 Seconds East a distance of 64.22 feet to a point located on the East right of way of Russell Street; thence South along the East right of way of Russell Street a distance of 680.13 feet to a point located on the North right of way of Halsey Avenue; thence South 32 Degrees 27 Minutes 45 Seconds West a distance of 81.63 feet to a point located at the intersection of the South right of way of Halsey Avenue and the East right of way of Russell Street; thence South along the East right of way of Russell Street a distance of 4089.41 feet to a point located on the North right of way of Randolph Avenue; thence South 01 Degree 30 Minutes 00 Seconds West a distance of 42.15 feet to a point located at the intersection of the South right of way of Randolph Avenue and the East right of way of California Street; thence South along the East right of way of California Street a distance of 8467.18 feet to a point located at the intersection of the East right of way of California Street and the South right of way of Bob Wallace Avenue; thence Westerly along the South right of way of Bob Wallace Avenue a distance of 3996.94 feet to a point located at the intersection of the South right of way of Bob Wallace Avenue and the East right of way of the Huntsville Madison County Railroad Authority; thence South along the East right of way of the Huntsville Madison County Railroad Authority a distance of 2368.97 feet to a point located at the intersection of the East right of way of the Huntsville Madison County Railroad Authority and the North right of way Drake Avenue; thence West along the North right of way of Drake Avenue a distance of 2977.34 feet; thence North 04 Degrees 35 Minutes 43 Seconds West a distance of 308.32 feet; thence North 04 Degrees 00 Minutes 00 Seconds East a distance of 518.65 feet; thence North 02 Degrees 00 Minutes 01 Seconds East a distance of 165.47 feet; thence North 26 Degrees 20 Minutes 35 Seconds West a distance of 189.68 feet; thence North 88 Degrees 15 Minutes 00 Seconds West a distance of 986.00 feet; thence North 47 Degrees 15 Minutes 11 Seconds West a distance of 60.18 feet; thence North 88 Degrees 05 Minutes 20 Seconds West a distance of 789.41 feet to a point located at the intersection of the West right of way of First Street and the South right of way of Fifteenth Avenue; thence West along the South right of way of Fifteenth Avenue a distance of 2516.90 feet; thence North 01 Degree 53 Minutes 16 Seconds East a distance of 92.05 feet to a point located at the intersection of the North right of way of Fifteenth Avenue and the East right of way of Triana

Boulevard; thence North along the East right of way of Triana Boulevard a distance of 313.02 feet; thence North 34 Degrees 42 Minutes 30 Seconds West a distance of 89.90 feet; thence North 07 Degrees 45 Minutes 56 Seconds East 179.85 feet; thence North 15 Degrees 28 Minutes 21 Seconds East 119.36 feet; thence North 01 Degree 41 Minutes 16 Seconds West 137.22 feet; thence North 01 Degree 32 Minutes 37 Seconds East 288.94 feet; thence North 01 Degree 27 Minutes 55 Seconds West 143.15 feet; thence North 88 Degrees 16 Minutes 19 Seconds West a distance of 103.56 feet to a point located at the intersection of the West right of way of Triana Boulevard and the North right of way of Long Avenue; thence West along the North right of way of Long Avenue a distance of 1302.49 feet; thence continue West a distance of 54.22 feet to a point on the West right of way of Tenth Street; thence South along the West right of way of Tenth Street a distance of 48.86 feet to a point located at the intersection of the West right of way of Tenth Street and the North right of way of Bob Wallace Avenue; thence Westerly along the North right of way of Bob Wallace Avenue a distance of 296.82 feet; thence North 01 Degree 17 Minutes 51 Seconds East a distance of 1093.35 feet to a point located on the North right of way of Ninth Avenue; thence West along the North right of way of Ninth Avenue a distance of 1490.92 feet to a point located at the intersection of the North right of way of Ninth Avenue and the East right of way of Fourteenth Street; thence North along the East right of way of Fourteenth Street a distance of 1259.00 feet; thence North 89 Degrees 30 Minutes 41 Seconds West a distance of 79.74 feet to a point located on the North right of way of Pine Avenue; thence West along the North right of way of Pine Avenue a distance of 688.98 feet to a point located at the intersection of the North right of way of Pine Avenue and the East right of way of Pine Place; thence North along the East right of way of Pine Place a distance of 149.74 feet; thence North 07 Degrees 05 Minutes 32 Seconds West a distance of 831.21 feet; thence North 01 Degree 40 Minutes 00 Seconds East a distance of 143.99 feet; thence South 88 Degrees 21 Minutes 09 Seconds East a distance of 34.95 feet; thence North 01 Degree 38 Minutes 52 Seconds East a distance of 90.00 feet; thence North 88 Degrees 21 Minutes 09 Seconds West a distance of 34.75 feet; thence North 01 Degree 46 Minutes 46 Seconds East a distance of 1734.71 feet to a point located on the North right of way of Holmes Avenue; thence West along the North right of way of Holmes Avenue a distance of 172.88 feet; thence South 78 Degrees 53 Minutes 41 Seconds West a distance of 58.44 feet; thence North 02 Degrees 50 Minutes 00 Seconds East a distance of 868.01 feet; thence South 83 Degrees 53 Minutes 04 Seconds East a distance of 670.64 feet; thence North 35 Degrees 37 Minutes 29 Seconds East a distance of 652.62 feet; thence South 88 Degrees 23 Minutes 21 Seconds East a distance of 412.72 feet; thence North 00 Degrees 37 Minutes 28 Seconds East a distance of 75.80 feet; thence South 87 Degrees 36 Minutes 17 Seconds East a distance of 192.82 feet; thence South 00 Degrees 31 Minutes 06 Seconds West a distance of 67.41 feet; thence South 88 Degrees 58 Minutes 29 Seconds East a distance of 507.07 feet; thence South 10 Degrees 00 Minutes 36 Seconds East a distance of 156.90 feet; thence South 03 Degrees 00 Minutes 55 Seconds East a distance of 370.76 feet; thence South 08 Degrees 42 Minutes 14 Seconds West a distance of 308.03 feet; thence North 82 Degrees 59 Minutes 59 Seconds East a distance of 397.19 feet; thence North 89 Degrees 31 Minutes 02 Seconds East a distance of 261.69 feet; thence North 80 Degrees 14 Minutes 33 Seconds East a distance of 152.74 feet; thence North 84 Degrees 30 Minutes 33 Seconds East a distance of 145.55 feet; thence North 71 Degrees 19 Minutes 42 Seconds East a distance of 254.28 feet; thence North 71 Degrees 33 Minutes 13 Seconds East a distance of 127.42 feet; thence North 79 Degrees 09 Minutes 22 Seconds East a distance of 336.37 feet; thence North 54 Degrees 20 Minutes 59 Seconds East a distance of 283.59 feet; thence South 87 Degrees 15 Minutes 44 Seconds East a distance of 68.96 feet; thence North 87 Degrees 13 Minutes 14 Seconds East a distance of 539.44 feet; thence North 00 Degrees 35 Minutes 52 Seconds West a distance of 44.90 feet; thence North 86 Degrees 59 Minutes 59 Seconds East a distance of 198.51 feet; thence South 02 Degrees 37 Minutes 32 Seconds East a distance of 50.45 feet; thence North 86 Degrees 43 Minutes 12 Seconds East a distance of 735.84 feet; thence South 01 Degree 29 Minutes 54 Seconds West a distance of 25.08 feet; thence North 86 Degrees 59 Minutes 56 Seconds East a distance of 100.00 feet; thence South 01 Degree 29 Minutes 58 Seconds West a distance of 99.93 feet; thence North 86 Degrees 59 Minutes 59 Seconds East a distance of 199.99 feet; thence North 01 Degree 30 Minutes 11 Seconds East a distance of 17.69 feet; thence North 87 Degrees 30 Minutes 01 Seconds East a distance of 147.29 feet; thence North 81

Degrees 23 Minutes 57 Seconds East a distance of 50.69 feet; thence North 87 Degrees 30 Minutes 00 Seconds East a distance of 463.10 feet; thence North 41 Degrees 44 Minutes 04 Seconds East a distance of 92.63 feet; thence North 37 Degrees 45 Minutes 00 Seconds East a distance of 86.38 feet; thence North 30 Degrees 59 Minutes 25 Seconds East a distance of 163.48 feet to a point located on the West right of way of Pulaski Pike; thence along the West right of way of Pulaski Pike the following bearings and distances: North 16 Degrees 23 Minutes 09 Seconds West a distance of 78.33 feet; thence South 87 Degrees 30 Minutes 00 Seconds West a distance of 11.99 feet; thence North 06 Degrees 57 Minutes 54 Seconds West a distance of 54.81 feet; thence North 01 Degree 45 Minutes 00 Seconds West a distance of 60.36 feet; thence North 87 Degrees 30 Minutes 09 Seconds East a distance of 15.49 feet; thence North 00 Degrees 19 Minutes 38 Seconds West a distance of 71.45 feet; thence North 06 Degrees 19 Minutes 47 Seconds East a distance of 60.53 feet; thence North 12 Degrees 52 Minutes 58 Seconds East a distance of 77.79 feet; thence North 19 Degrees 31 Minutes 04 Seconds East a distance of 105.94 feet; thence North 01 Degree 51 Minutes 56 Seconds East a distance of 220.17 feet; thence North 56 Degrees 33 Minutes 49 Seconds East a distance of 159.64 feet; thence North 19 Degrees 16 Minutes 55 Seconds East a distance of 81.67 feet; thence North 13 Degrees 16 Minutes 52 Seconds East a distance of 48.90 feet; thence North 06 Degrees 29 Minutes 57 Seconds West a distance of 46.04 feet; thence North 23 Degrees 33 Minutes 54 Seconds East a distance of 57.77 feet; thence North 02 Degrees 29 Minutes 59 Seconds East a distance of 79.30 feet; thence North 04 Degrees 52 Minutes 19 Seconds West a distance of 107.61 feet; thence North 14 Degrees 02 Minutes 04 Seconds West a distance of 126.39 feet; thence North 23 Degrees 59 Minutes 40 Seconds West a distance of 185.38 feet; thence North 33 Degrees 53 Minutes 12 Seconds West a distance of 467.06 feet; thence North 32 Degrees 50 Minutes 41 Seconds West a distance of 431.53 feet; thence North 38 Degrees 20 Minutes 07 Seconds West a distance of 95.73 feet; thence North 31 Degrees 25 Minutes 53 Seconds West a distance of 291.40 feet; thence North 60 Degrees 48 Minutes 18 Seconds East a distance of 18.55 feet; thence North 31 Degrees 11 Minutes 49 Seconds West a distance of 142.67 feet; thence North 73 Degrees 39 Minutes 40 Seconds West a distance of 145.81 feet to a point located on the South right of way of University Drive; thence Easterly along the South right of way of University Drive a distance of 832.48 feet; thence North 64 Degrees 21 Minutes 22 Seconds East a distance of 215.01 feet to a point located in the centerline of Memorial Parkway; thence Northerly along the centerline of Memorial Parkway a distance of 3581.30 feet back to the Point of Beginning and containing 3707.53 Acres, more or less.

LESS AND EXCEPT THE FOLLOWING:

All that part of Section 02, Township 04 South, Range 01 West of the Huntsville Meridian in Madison County, Alabama; more particularly described as beginning at a point located North 54 Degrees 26 Minutes 45 Seconds West a distance of 1015.29 feet from the Southeast Corner of said Section 02; thence from the Point of Beginning, North 88 Degrees 12 Minutes 00 Seconds West a distance of 1198.20 feet; thence North 03 Degrees 21 Minutes 17 Seconds East a distance of 802.98 feet; thence South 89 Degrees 57 Minutes 02 Seconds East a distance of 746.87 feet; thence South 25 Degrees 40 Minutes 53 Seconds East a distance of 191.54 feet; thence South 16 Degrees 22 Minutes 17 Seconds East a distance of 117.23 feet; thence South 08 Degrees 00 Minutes 00 Seconds East a distance of 211.00 feet; thence North 78 Degrees 34 Minutes 25 Seconds East a distance of 85.69 feet; thence South 25 Degrees 44 Minutes 43 Seconds East a distance of 401.37 feet back to the Point of Beginning and containing 17.94 Acres, more or less.

ALSO LESS AND EXCEPT THE FOLLOWING:

All that part of Section 03, Township 04 South, Range 01 West of the Huntsville Meridian in Madison County, Alabama; more particularly described as beginning at a point located South 23 Degrees 36 Minutes 42 Seconds West a distance of 2555.30 feet from the Northeast Corner of said Section 03; thence from the Point of Beginning, South 01 Degree 38 Minutes 59 Seconds West a distance of 58.99 feet; thence North 88 Degrees 14 Minutes 59 Seconds West a distance of 56.02 feet; thence North 01 Degree 44 Minutes 39 Seconds East a distance of 58.99 feet; thence South 88 Degrees 15 Minutes 00 Seconds East a distance of 55.92 feet back to the Point of Beginning and containing 0.08 Acres, more or less.

ALSO LESS AND EXCEPT THE FOLLOWING:

All that part of Section 03, Township 04 South, Range 01 West of the Huntsville Meridian in Madison County, Alabama; more particularly described as beginning at a point located South 34 Degrees 57 Minutes 06 Seconds West a distance of 2446.96 feet from the Northeast Corner of said Section 03; thence from the Point of Beginning, South 00 Degrees 58 Minutes 18 Seconds West a distance of 16.00 feet; thence North 87 Degrees 48 Minutes 16 Seconds West a distance of 13.00 feet; thence North 00 Degrees 58 Minutes 18 Seconds East a distance of 16.00 feet; thence South 87 Degrees 48 Minutes 16 Seconds East a distance of 13.00 feet back to the Point of Beginning and containing 207.95 Square Feet, more or less.

THE TOTAL ACREAGE FOR ALL OF TIF DISTRICT 9 (AFTER THE REMOVAL OF THE LESS AND EXCEPT TRACTS) IS 3689.51 ACRES, MORE OR LESS.